

25STCV37140 25STCV37140

County: los-angeles

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Case Number: 25STCV37140 Hearing Date: July 2, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

NEDRA

DIONE SHANNON,

Plaintiff,

vs.

MARIAN

ARCENEUX; BROWN & OWENS FAMILY LP,

Defendant(s).

Case No.:

25STCV37140

Hearing

Date:

July 6,

2026

[TENTATIVE]

ORDER RE: DEFENDANTS' DEMURRER TO
COMPLAINT AND MOTION TO STRIKE PORTIONS OF COMPLAINT

I. BACKGROUND

Plaintiff Nedra Dione Shannon ("Plaintiff") is an individual who rented and resided at 4206 Creed Ave, Los Angeles, California 90008 (the "Property"), a unit subject to the Los Angeles Rent Stabilization Ordinance and the Anti-Tenant Harassment Ordinance. (Compl., ¶ 1.) Defendant Marian Arceneaux served as the manager and managing agent for the Property. (Id. at ¶ 2.) Defendant Brown & Owens Family LP is a California domestic partnership that owns and operates the Property. (Id. at ¶ 3.) The Property is a multi-unit residential rental property. (Id. at ¶ 5.)

On December 18, 2025, Plaintiff filed a Complaint against Defendants alleging twelve causes of action including (1) Violation of Los Angeles Anti-Tenant Harassment Ordinance (LAMC § 45.30 et seq.); (2) Retaliation (Cal. Civ. Code § 1942.5); (3) Landlord Harassment/Illegal Conduct (Cal. Civ. Code § 1940.2); (4) Wrongful Entry/Violation of Right-of-Entry Statute (Cal. Civ. Code § 1954); (5) Breach of Covenant of Quiet Enjoyment (Cal. Civ. Code § 1927); (6) Breach of the Implied Warranty of Habitability (Cal. Civ. Code §§ 1941.1, 1941.3; H&S Code § 7920.3); (7) Negligent Per Se; (8) Private Nuisance; (9) Intentional Infliction of Emotional Distress; (10) Invasion of Privacy; (11) Unfair Competition (Bus. & Prof. Code § 17200); and (12) Battery (Cal. Civ. Code § 1708).

The Complaint alleges a landlord-tenant dispute spanning five years. Plaintiff alleges that at move-in in August 2020 Defendants permitted potted plants and items in the rear common area. (Compl., ¶ 6.) In November 2020, during COVID, Defendants posted three notices threatening eviction over street-placed storage. (Ibid.) From November 2020 through August 2025, Plaintiff alleges that Defendants engaged in a continuing pattern of harassment and interference, including unlawful attempts and entries without notice, hostile and unannounced contacts at unreasonable hours, failure and delay in repair of defects, interference with access and parking, refusal to provide rent receipts, use of the Los Angeles Housing Department, and use of Public Health and inspections and city notices to demand or claim denied access and retaliate. (Id. at ¶ 7.)

On March 3, 2026, Defendants filed a Declaration of Demurring or Moving Party in Support of Automatic Extension because Defendants were unable to meet and confer with Plaintiff.

On March 4, 2026, Defendants filed this Demurrer and Motion to Strike. On June 25, 2026, Defendants filed a Reply and Notice of Non-Opposition. On June 30, 2026, Plaintiff filed a late opposition to the Demurrer and Motion to Strike.

II. MEET AND CONFER REQUIREMENT

Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. If an amended complaint, cross-complaint, or answer is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a demurrer to the amended pleading. (Cal. Civ. Proc. Code § 430.41, subd. (a).) A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer. (Id. at subd. (a)(4).) Civil Procedure section 435.5 similarly requires parties to meet and confer prior to a Motion to Strike and states that an insufficient meet and confer is not the grounds to grant or deny the motion. (Civ. Proc. Code § 435.5.)

Here, Defendants attempted to meet and confer with Plaintiffs prior to the filing of this demurrer and motion. (Diggs Decl., ¶ 3-12.) However, Defendants did not meet and confer with Plaintiffs prior to the filing of this demurrer and motion. (Id. at ¶ 12.) Although the meet and confer requirement was not met, the court will still analyze this Motion on its merits.

III. LEGAL STANDARD on demurrer

As a general matter, in a demurrer proceeding, the defects

must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in section 430.30, to the pleading on any one or more of the following grounds... (e) the pleading does not state facts sufficient to constitute a cause of action. (f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible." (Code Civ. Proc., § 430.10.) "[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id. [AW15.1]; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

IV. DISCUSSION

A.

SEVENTH

CAUSE OF ACTION FOR NEGLIGENCE PER SE

Defendants argue

Plaintiff's seventh cause of action fails because Plaintiff did not add any independent factual or legal basis for relief. Rather, Plaintiff merely restates the same statutory violations of Civil Code §§ 1954, 1940.2, 1942.5, 1927, 1941.1, 1941.3, Health & Safety Code § 17920.3, and LAMC § 45.30 et

seq. stated in the First through Sixth Causes of Action as a separate negligence per se cause of action. Additionally, Negligence Per Se is not a separate cause of action.

In opposition,

Plaintiff acknowledges the Evidence Code section 669 operates as an evidentiary doctrine creating a presumption of negligence based on statutory violations. Plaintiff argues that the allegations supporting negligence per se are still relevant.

The court finds

Plaintiff's arguments unpersuasive. "[T]he doctrine of negligence per se is not a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence." (Goldstein v. Superior Ct. (2023) 93 Cal.App.5th 736, 741.)

Because the

doctrine of negligence per se is not a separate cause of action and Plaintiff has already stated direct causes of action under Civil Code §§ 1954, 1940.2, 1942.5, 1927, 1941.1, 1941.3, Health & Safety Code § 17920.3, and LAMC § 45.30 et seq., the cause of action for negligence per se is merely duplicative. A demurrer may be sustained when a cause of action is duplicative of another cause of action and "thus adds nothing to the complaint by way of fact or theory of recovery." (Rodrigues v. Campbell Industries (1978) 87 Cal.App.3d 494, 501; see Palm Springs Villas II Homeowners Association, Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.) Plaintiff has failed to provide additional, independent factual basis for the negligence per se cause of action.

Accordingly, the

demurrer to the seventh cause of action is sustained without leave to amend.

B.

NINTH cause

of action for intentional infliction of emotional distress

To

state a claim for intentional infliction of emotional distress ("IIED"), a plaintiff must allege: (1) extreme and outrageous conduct by the defendant; (2) intention to cause, or reckless disregard of the probability of causing,

emotional distress; (3) severe emotional distress; and (4) actual and proximate causation. (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050) The conduct must be "so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Id. at 1051.) Liability for IIED does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. (Crouch v. Trinity Christian Ctr. of Santa Ana, Inc. (2019) 39 Cal. App. 5th 995, 1007.)

Defendants

argue that the Ninth Cause of Action characterizes conduct ordinary landlord-tenant interactions as "extreme and outrageous." Because the ninth cause of action fails to allege conduct rising to the "extreme and outrageous" standard, it must be dismissed.

In

opposition, Plaintiff contends the Complaint alleges conduct that goes beyond ordinary landlord-tenant disputes. Plaintiff argues that whether the conduct was sufficiently extreme and outrageous is a fact-intensive question that should not be resolved against Plaintiff at the pleading stage. Moreover, the Complaint alleges a prolonged course of conduct affecting Plaintiff's home, safety, privacy, and housing security.

Here,

Plaintiff's ninth cause of action alleges:

"Such

conduct was not mere indignities or annoyances, but included: repeated unlawful and pretextual entries (including the locksmith entry of May 2, 2025); public multi-page postings taped to Plaintiff's doors and windows and a bright yellow packet deliberately obscuring her security camera; covering her camera outright; late-night and early-morning calls and voicemails (including around 3:00 a.m.); bringing police and a filming crew to Plaintiff's home absent any emergency; physically aggressive contact when Defendant shoved a door into Plaintiff in February 2024; a June 2024 doorway tussle causing Plaintiff physical injury to her hand; and serial unlawful detainer filings (3/27/24; 11/26/24; 8/27/25) initiated to intimidate and pressure Plaintiff to vacate."

(Compl., ¶

125.)

Assuming these facts to be true, Plaintiff has sufficiently pleaded facts to demonstrate that that Defendants' conduct was "extreme and outrageous." Plaintiff sufficiently pleaded facts such as middle-of-the-night calls, physical contact such as shoving doors, calling the police without emergency, and filing multiple unlawful detainers that may constitute extreme and outrageous behavior.

Moreover, Defendants rely on *Newby v. Alto Riviera Apartments* (1976) 60 Cal.App.3d 288, 297-98 to argue that courts have rejected IIED claims based on more aggressive behavior than alleged here. This reliance is misplaced. There, the Court found the appellant presented substantial evidence that the respondents' behavior was outrageous. (*Newby v. Alto Riviera Apartments* (1976) 60 Cal.App.3d 288, 297-98.) There, the manager shouted at the appellant and ordered her out of the apartment in three days. (*Ibid.*) Here, Plaintiff alleges to have dealt with aggressive behavior and multiple unlawful detainer filings. Thus, Plaintiff has sufficiently plead facts to demonstrate extreme or outrageous behavior.

Accordingly, the demurrer to the ninth cause of action is overruled.

C. twelfth cause of action for battery

The elements of a civil battery are: (1) defendant intentionally did an act which resulted in a harmful or offensive contact with the plaintiff's person, (2) plaintiff did not consent to the contact, and (3) the harmful or offensive contact caused injury, damage, loss, or harm to the plaintiff. (*Piedra v. Dugan* (2004) 123 Cal.App.4th 1483, 1495.)

Defendants argue that the twelfth cause of action is fatally vague and conclusory. The Complaint fails to allege the context in which the alleged dispute on February 16 occurred, whether it was during a disputed entry, who initiated the contact, whether Defendant Arceneaux touched Plaintiff, and whether an actual injury resulted. Additionally, the June 2024 allegation is deficient because it does not identify the date, location, or circumstances of the incident.

In opposition, Plaintiff argues the

allegations were sufficient to plead battery because they allege intentional conduct resulting in harmful or offensive contact without consent. Additionally, Plaintiff contends Defendants' argument that more detail is needed concerns evidentiary matters better addressed in discovery.

The twelfth cause of action alleges:

"On or about February 16, 2024, Defendant [Arceneaux], acting individually and as managing agent for Owner Defendant, intentionally and without consent snatched a door from Plaintiff's grasp and forcefully pushed it into Plaintiff's back while Plaintiff was standing on the porch. The contact was offensive, unconsented to, and caused Plaintiff pain, fear, and humiliation in the presence of her children.

On or about June 2024, during a purported "emergency" entry, Defendant escalated a confrontation at the doorway, resulting in a physical tussle in which Plaintiff's hand was injured, requiring medical attention. The contact was intentional, unprivileged, and caused Plaintiff physical harm."

(Compl., ¶ 147-148.)

Assuming these facts to be true, Plaintiff has sufficiently pled facts to demonstrate Defendant Arceneaux's intentional act (such as snatching the door, forcefully pushing it, and escalating the confrontation) resulted in harmful or offensive conduct (such as humiliation, fear, pain, and necessitating medical attention) and that the plaintiff did not consent to that conduct. The Court does not agree with the Defendants' assertion that additional context is necessary to meet the level of specificity to state a claim for civil battery.

Accordingly, the demurrer to the twelfth cause of action is overruled.

D. uncertainty

A demurrer for uncertainty lies when a complaint is "ambiguous or

unintelligible." (Code Civ. Proc. § 430.10(f).) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) "The objection of uncertainty does not go to the failure to allege sufficient facts." (Brea v. McGlashan (1934) 3 Cal.App.2d 454, 459.) "It goes to the doubt as to what the pleader means by the facts alleged." (Id.) "Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet." (People v. Lim (1941) 18 Cal.2d 872, 882.)

Defendants contends that the Complaint is uncertain because (1) it pleads 73 paragraphs of background; (2) its prayer for relief is overlapping and duplicative; and (3) it fails to specify the dates of the acts which establish a "continuing pattern" of conduct.

In opposition, Plaintiff argues that Defendants may disagree as to the detail of the Complaint, but Defendants cannot reasonably claim to be unable to understand the claims. Moreover, additional factual detail can be obtained through discovery.

The Court agrees with Plaintiff. The Court does not find Defendant's arguments to be persuasive. The Complaint is not so uncertain to make it unintelligible.

E.

LITIGATION

PRIVILEGE

Defendants argue that the Litigation Privilege bars the first, second, third, and eleventh causes of action because they were based on filing unlawful detainer actions.

In opposition, Plaintiff argues the Litigation Privilege does not bar these causes of action. The unlawful detainer actions included in the Complaint are alleged as part of the factual chronology and context of Defendants' course of conduct. Plaintiff argues the Litigation Privilege does not eliminate claims based on separate wrongful conduct merely because litigation-related events are referenced to in the Complaint.

To

sustain a demurrer upon an affirmative defense, the affirmative defense must clearly appear on the face of the complaint. (See *CrossTalk Productions, Inc. v. Jacobson* (1998) 65 Cal.App.4th 631, 635.) "A demurrer based on an affirmative defense cannot properly be sustained where the action might be barred by the defense, but is not necessarily barred." (*Ibid.*)

A

privileged publication or broadcast is one made: In any (1) legislative proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized by law and reviewable pursuant to Chapter 2 (commencing with Section 1084) of Title 1 of Part 3 of the Code of Civil Procedure. (Civ. Code § 47, subd. (b).) The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action. (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 212.)

A

threshold issue in determining if the litigation privilege applies is whether the alleged injury arises from a communicative act or noncommunicative conduct. (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal. 4th 1232, 1248.) The key in determining whether the privilege applies is whether the injury allegedly resulted from an act that was communicative in its essential nature. (*Ibid.*) For example, the following acts have been deemed communicative and thus protected by the litigation privilege: attorney prelitigation solicitations of potential clients and subsequent filing of pleadings in the litigation, and testimonial use of the contents of illegally overheard conversation. The following acts have been deemed noncommunicative and thus unprivileged: prelitigation illegal recording of confidential telephone conversations; eavesdropping on a telephone conversation; and physician's negligent examination of patient causing physical injury. (*Ibid.*) The court draws "a careful distinction between a cause of action based squarely on a privileged communication, such as an action for defamation, and one based upon an underlying course of conduct evidenced by the communication. (*Ibid.*) "As a general rule, the privilege ' "applies only to communicative acts and does not privilege tortious courses of conduct." ' (Id. at p. 1249.) The filing of a legal action is not "an independent, noncommunicative, wrongful

act.” (Id.)

Here,

the affirmative defense does not clearly bar the causes of action. There are no protected communications from unlawful detainer actions included in or attached to the Complaint. Moreover, while legal filings are communicative actions, the Complaint uses the legal filings to allege that Plaintiff was harassed and pressured to vacate by the Defendants. (See Compl., ¶ 77.) The filing of unlawful detainer actions is listed as one of multiple allegedly harassing actions conducted by Defendants. (Ibid.) Thus, because the Litigation Privilege applies only to communicative acts, not tortious conducts, and must clearly bar the cause of action, the Litigation Privilege is not applicable.

Accordingly,

the demurrer to first, second, third, and eleventh causes of action are overruled.

F.

CAUSES

OF ACTION AGAINST DEFENDANT MARIAN ARCENEUX

i.

Defendant

Arceneaux is Alleged to be a Property Manager

Defendants

argue that the Complaint must be dismissed as to Defendant Arceneaux (“Arceneaux”) because the allegations establish she acted exclusively in her capacity as Managing General Partner of Brown & Owens LP, not as an individual. Defendants further argue that as a general partner acting within her authority, Arceneaux is not liable for the entity’s obligations. Because Arceneaux’s actions were within the scope of a managing general partner’s authority, Defendant Brown & Owens Family LP is legally responsible, not Arceneaux, for causes of action one through eight, ten, and eleven.

In

opposition, Plaintiff argues that Defendants’ contention that Arceneaux cannot be individually liable because she acted only in a representative capacity is premature. Plaintiff argues that a person who personally participates in

tortious conduct is not automatically shielded from liability merely because she also acted as an agent or manager.

Here,

the Complaint states that Arceneaux “is an individual who, at all relevant times, served as the manager and managing agent for the Subject Property on behalf of the owning limited partnership, with authority over access, repairs, inspections, notices, and rent-related communications affecting Plaintiff’s tenancy.” (Compl., ¶ 2.) These allegations establish that Arceneaux is a “manager and managing agent” for the Property, rather than the manager of the Limited Partnership. Thus, Defendants have not established that the Complaint alleges that Arceneaux is a managing agent of the limited partnership.

Accordingly, Defendants’ demurrer to the Complaint because Arceneaux is a general partner is overruled.

ii. Statutory Causes of Action and Allegations of Individual Liability

Defendants argue that the statutory causes of actions under LAMC § 45.32, Civil Code § 1942.5 (retaliation), Civil Code § 1940.2 (harassment), Civil Code § 1954 (wrongful entry), and Civil Code § 1927 (quiet enjoyment) all impose obligations on the “owner” or the “landlord” of the premises, not an individual who manages the property in representative capacity. Because Defendant Brown & Owens Family LP is the owner and landlord it is the proper defendant for these statutory claims, not Arceneaux.

First, the first cause of action under LAMC § 45.32 defines a “landlord” as referring to “any owner, lessor, sublessor, manager, and/or person, including any firm, corporation, partnership, or other entity, having any legal or equitable right of ownership or possession or the right to lease or receive rent for the use and occupancy of a rental unit, and whether acting as principal or through an agent or representative or successor of any of the foregoing.” (LAMC § 45.32.) This definition of “landlord” includes a “manager.” The Complaint has sufficiently plead that Arceneaux is a manager of the Property. Thus, the first cause of action cannot be sustained on these grounds.

Similarly, the fifth cause of action

under Civil Code § 1927 does not specifically state it must be brought against a landlord. The section states: “An agreement to let upon hire binds the letter to secure to the hirer the quiet possession of the thing hired during the term of the hiring, against all persons lawfully claiming the same.” (Civ. Code § 1927.) Thus, the fifth cause of action cannot be sustained on these grounds.

Next, the second cause of action

under Civil Code § 1942.5, the third cause of action under Civil Code § 1940.2, and the fourth cause of action under Civil Code § 1954 all require liability from a landlord, which does not specifically include a property manager. The Complaint does not plead that Arceneaux is a landlord. Instead, it states that owner and operator of the Property is Defendant Brown & Ownes Family LP. Thus, the demurrer to the second, third, and fourth causes of action is sustained.

Furthermore, in the second, third,

and fourth causes of action are not sufficiently plead. To sufficiently plead claims under statutes that require landlord liability, Plaintiff would either need to plead that Arceneaux was a landlord or that Arceneaux was the alter ego of the limited partnership. Here, the Complaint does neither.

Accordingly, the demurrer to second,

third, and fourth causes of action is sustained with leave to amend. The demurrer to the first and fifth causes of action against the Arceneaux is overruled.

V. LEGAL

STANDARD ON MOTION TO STRIKE

The

court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

VI. DISCUSSION

A.

PUNITIVE DAMAGES

Defendants

argue that punitive damages allegations must be stricken as to (1) Defendant Brown & Ownes Family LP because no corporate ratification was alleged and (2) Defendant Arceneaux because no individual liability was alleged.

In

opposition, Plaintiff contends that Plaintiff alleges willful, malicious, oppressive, and bad-faith conduct sufficient to support punitive damages allegations at the pleading stage. Plaintiff argues that the Complaint alleges that Arceneaux served as manager and managing agent for the Property, which was sufficient at the pleading stage.

According

to Civil Procedure section 3294(b):

“An

employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.”

When

the defendant is a corporation, “the oppression, fraud, or malice must be perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent of the corporation.” (Wilson v. Southern California Edison Company (2015) 234 Cal.App.4th 123, 164; see Civ. Code § 3294(b).) Civil Code section 3294 authorizes the recovery of punitive damages in non-contract cases where “the defendant has been guilty of oppression, fraud, or malice . . .” (Civ. Code § 3294(a).) “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is

carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Id., § 3294(c)(1).) A plaintiff must establish the defendant was aware of the probable dangerous consequences of his conduct and that he willfully and deliberately failed to avoid those consequences to support an award of punitive damages based on conscious disregard of the safety of others. (Penner v. Falk (1984) 153 Cal.App.3d 858, 867.) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code § 3294(c)(2).) “‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Id., § 3294(c)(3).)

Punitive

damages thus require more than the mere commission of a tort. (See Taylor v. Superior Court (1979) 24 Cal.3d 890, 894-95.) Specific facts must be pleaded in support of punitive damages. (See Hillard v. A.H. Robins Co. (1983) 148 Cal.App.3d 374, 391-92.)

Here,

Plaintiff seeks punitive damages on the second, third, fourth, seventh, ninth, tenth, and twelfth causes of action. (See Compl.) Because the demurrer to the seventh cause of action was sustained, the issue as to the seventh cause of action is moot as to both Defendants. Additionally, the issue is moot as to the second, third, and fourth causes of action for Defendant Arceneaux.

The

Court agrees with Defendants that the Complaint contains no allegations identifying any officer, director, partner, or managing agent of the limited partnership who authorized, ratified, or engaged in alleged oppressive conduct on behalf of the entity. Arceneaux is alleged to be a manager of the property, not a managing general partner. (Compl., ¶ 2.) Thus, the motion to strike punitive damages against Defendant Brown & Owens Family LP is granted with leave to amend.

As for Defendant Arceneaux, the

Court must consider whether punitive damages were sufficiently plead as for the non-moot causes of action, which are the ninth, tenth, and twelfth causes of

action. The Complaint is sufficiently plead as to each of these causes of action. Each cause of action alleges conduct intended by Arceneaux to cause injury to the Plaintiff or despicable conduct which is carried on by Arceneaux with a willful and conscious disregard of the rights or safety of others. (Civ. Code § 3294(c)(1).)

The ninth cause of action for IIED alleges conduct such as late night calls, bringing police and a filming crew to Plaintiff's home absent emergency, physically aggressive conduct, and serial unlawful detainer filings intended to intimidate and pressure Plaintiff to vacate and which caused Plaintiff anxiety, humiliation, fear, sleep disturbance, and mental anguish. (Compl., ¶¶ 125, 127.) The tenth cause of action for invasion of privacy alleges conduct such as a locksmith entering without notice, obstructing Plaintiff's security camera, surveilling Plaintiff's doors, and filming Plaintiff. The twelfth cause of action pleads allegations that on two different occasions Arceneaux physically harmed or injured Plaintiff. Thus, Plaintiff sufficiently plead allegations that Arceneaux intended to cause injury or was despicable conduct in disregard of the rights or safety of Plaintiff. Accordingly, the request to strike punitive damages against Arceneaux for the non-moot ninth, tenth, and twelfth causes of action is denied.

b. DUPLICATIVE, uNCERTAIN, OR LACKS SPECIFICITY

Defendants argue that (1) treble damages must be stricken as duplicative and uncertain; (2) requests for civil penalties "per violation" must be stricken for lack of factual specificity; (3) paragraph 148 in the complaint must be stricken as vague and uncertain; (4) all statutory damages under Penal Code § 637.2 must be stricken as premature and speculative; and (5) the prayer for relief must be stricken due to duplicative damages.

In opposition, Plaintiff argues that (1) the request for treble damages is not duplicative; (2) that the civil penalty allegations are sufficiently specific; (3) paragraph 148 is sufficiently specific; (4) damages under Penal Code § 637.2 should not be stricken as specific dates and recordings are not yet known and will likely be found during discovery; (5) Defendants' concern about overlapping damages is premature.

The Court finds Defendants' arguments unpersuasive and improper for a Motion to Strike. The standard for a motion to strike is not whether the pleading is duplicative, uncertain, or lacks specificity, as suggested by Defendants. Instead, the court may strike any irrelevant,

false, or improper matter inserted in the pleading. (Code Civ. Proc., § 436(a).) Defendants' contentions have not properly met the standard for a motion to strike. For this reason, Defendants' arguments are unpersuasive and the motion to strike is denied.

VII. CONCLUSION

Based on the foregoing, Plaintiff's Demurrer is sustained in part and overruled in part and Plaintiff's Motion to Strike is granted in part and denied in part.

The demurrer to the seventh cause of action is sustained without leave to amend as to both Defendants. The demurrer to the ninth and twelfth causes of action is overruled. The demurrer to the second, third, and fourth causes of action as to Defendant Marian Arceneaux is sustained with leave to amend. The demurrer to the first and fifth causes of action as to Defendant Marian Arceneaux is overruled.

The Motion to Strike punitive damages against Defendant Brown & Owens Family LP is granted with leave to amend. The remainder of the Motion to Strike is denied.

Moving Party is ordered to give notice.

DATED:

July 6, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

-

Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

-

If a party

intends to submit on this tentative ruling, the party must send an email to the court at

with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

-

Unless all

parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If the

parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.